IN THE INDUSTRIAL COURT OF MALAYSIA

CASE NO.: 12/4-436/24

BETWEEN

PUSPARANI A/P MOHAN

AND

U.C.I EDUCATION SDN BHD

AWARD NO.: 1815 OF 2025

BEFORE	**: Y.A. PUAN CHOW SIEW LIN - CHAIRMAN**
VENUE	**:** Industrial Court of Malaysia, Kuala Lumpur
DATE OF REFERENCE	**:** 01.04.2025.
DATE(S) OF MENTION	**:** 17.05.2024, 11.07.2024, 05.08.2024, 21.01.2025 & 12.02.2025.
DATE(S) OF HEARING	**:** 24.02.2025 & 25.02.2025.
WRITTEN SUBMISSION (CLAIMANT)	**:** 29.08.2025.
WRITTEN SUBMISSION (COMPANY)	**:** 09.06.2025 & 23.06.2025.
REPRESENTATION	**:** Ms. Johanna Solomon Messrs. Johanna Solomon & Associates - Counsel for the Claimant Ms. Tham Li Vyen together with Mr. Mohamad Danish bin Mohd Zaini Messrs. Raja, Darryl & Loh - Counsel for the Company

REFERENCE:

This is a reference from the Director General of Industrial Relations Malaysia pursuant to *Section 20(3) of the Industrial Relations Act 1967 ("the Act")* in respect of the dismissal of **PUSPARANI A/P MOHAN** ("the Claimant") by **U.C.I EDUCATION SDN BHD** ("the Company") on 1st July 2023.

AWARD

[1] This Court had considered all the notes of proceedings, documents, cause papers, submissions and bundles of authorities in handing down this Award namely:-

(i) The Claimant's Statement of Case dated 27.05.2024 ("**SOC**");

(ii) The Amended Company's Statement in Reply dated 21.02.2025 ("**SIR**");

(iii) The Claimant's Rejoinder dated 17.08.2024 ("**Rejoinder**");

(iv) The Claimant's Bundle of Document ("**CLB-1**");

(v) The Claimant's Bundle of Document Volume 2 ("**CLB-2**");

(vi) The Statement of Employees Provident Fund (EPF) 2023 dated 25.02.2025 ("**CLB-3**");

(vii) The Company's Bundle of Documents ("**COB-1**");

(viii) The Company's Bundle of Documents (Volume 2) ("**COB-2**");

(ix) The Claimant's Witness Statement (Pusparani a/p Mohan) dated 24.02.2025 ("**CLWS-1**");

(x) The Witness Statement of the Company's Witness (Sara Ogshagi) dated 25.02.2025 ("**COWS-1**");

(xi) The Witness Statement of the Company's Witness (Olga Tsilyk) dated 25.02.2025 ("**COWS-2**");

(xii) The Claimant's Written Submissions dated 06.06.2025 ("**Claimant's Submission**") and Claimant's Bundle of Authorities ("**CL BOA**");

(xiii) The Claimant's Submission in Reply dated 20.06.2025 ("**Claimant's Reply-1**") and Bundle of Authorities ("**CL BOA-2**");

(xiv) The Company's Written Submissions dated 06.06.2025 ("**Company's Submission**") and The Company's Bundle of Authorities ("**CO BOA**");

(xv) The Company's Written Submissions in Reply dated 20.06.2025 ("**Company's Reply**") and The Company's Bundle of Authorities (Volume 2) ("**CO BOA-2**"); and

(xvi) Notes of Proceedings ("**NOP**").

FACTS OF THE CASE

[2] In her SOC, the Claimant pleaded, *inter alia*, as follows:

(a) The Claimant joined the Company on 01.07.2020 as an Assistant Manager with a salary of RM5,000.00. The Claimant was seconded to EYE KNOWLEDGE SDN. BHD. commencing from 01.07.2021 for an initial period of l year with the possibility of further extension;

(b) Vide a letter dated 01.07.2023, the Claimant had written to the Human Resource Manager of the Company stating her grievances, claiming

constructive dismissal ("the said CD Letter"). The said CD Letter is reproduced below for ease of reference (it is to be noted that there are two paragraphs Nos. 4.14 in the said CD Letter):

"*PUSPARANI MOHAN* *1st July 2023*
C-15-08 GEO RESIDENCY
BUKIT RIMAU, 40450
SHAH ALAM, SELANGOR

THE HUMAN RESOUCE MANAGER
CITY UNIVERSITY
No, Menara City, 8, Jalan 51a/223
46100 Petaling Jaya
Selangor
Attention : Ms. Sara Oshaghi (Iranian)
HOD International Marketing Department

Dear Sirs/ Madam,

RE : RESIGNATION LETTER DATED 1.7.2023
PUSPARANI MOHAN (NRIC No :XXXXXXXXXXX)
JOB DECRIPTION: ASSISTANT MANAGER

……
I refer to the above matter.

2. Please be informed that I was on my maternity leave from 15/03/2023 to 21/6/2023. Thereafter, I was in medical leave from 22/6/2023 to 27/6/2023 due to menstrual pain.

3. I hereby tender my resignation for constructive dismissal which would take effect immediately.

4. The following are my grievances that made me to tender my resignation:

4.1. I commence work at your company on 1st July 2020 as Assistant Manager. I was promised RM400.00 per student for each referral every month. But My Department Manager/Director (Ms. Sara Oshaghi) informed to submit the claim on yearly basis whenever I submitted my claims the claims were dragged for months for action and will be not paid, understood that all my claims were not submitted on time to the Management's approval. Therefore, my claims of 2020, 2021, 2022 years was burnt.

This year after many reminders, Ms. Sara Oshaghi took the unilateral decision to declare my number under Direct Recruitment staff Mr. Aymen (foreigner) due our system and chart as such.

I have been getting my commission from him since January 2023. However, on March 23 I left to my maternity leave my commissions were stopped unilaterally. I checked with the Assistant Manager Ms. Hawa she replied the reason for such drastic change unknown.

Since I've worked in the same department, I know how the staffs works. Ms. Sara Oshaghi threaten the staffs to not reveal matters or say the truth. Ms. Sara Oshaghi behave rude and call names as idiot/stupid. Ms. Sara Oshaghi treats everyone similar as slave in the office.

Ms. Sara's instruction should be followed by everyone in the office and I've followed too in many situations just to secure our own rice bowl.

Admin Manager Hawa Cik. Hawa who knows everything in and out, replied that she does not know the reasons but did not give my any reasons for the sudden non-payment of my commissions.

On the other hand, I also understand that for the last 3 months all my application which I received from my agents are also blocked. I am not sure why this is happening to me. I found out that Ms. Sara Oshaghi, the Director of Marketing Department blocked all my application without reason and blocked my commission thru Mr. Aymen (I got to know this through Whatsapp communication exchange between me and the admins.

4.2 I was continuously harassed during my confinement by Ms. Olga as no one else at the administration to replace me during my confinement. Before leaving for my maternity leave I handed over my work profile to Manager Ms. Olga (an Ukrainian). Ms. Olga prepared herself by attending meetings and learned everything since a month before I go for my maternity leave.

On 27th March Ms. Olga claimed she did not have anything and wants me to send the same thing in a different format as usual that's her method.

Since I didn't send the 2nd times, it made Ms. Sara angry at me. Thus I attended online meeting 14days after my delivery and Ms. Olga insisted to have zoom meetings frequently even after knowing I have just delivered my baby, I didn't attend the following zoom meeting because I became over stress/anxiety by trying to fulfill Ms. Olga request repletely. I texted Ms. Sara that am not feeling well but no response from Ms. Sara (enclosed WhatsApp screenshot)

4.3. I was removed from Team leader group and meetings update. Thus made me feeling that my job is not secured day by day due my maternity and I got into depression.

4.4. Ms. Sara treated me very low by play victim with my ego instructed the admins to obtain Ms. Olga approval for all

my matters to make me feel small and I did too several times. Ms. Sara always belittle even knowing that am having 17 years experiences in the same industry. Thus it caused me depression to seek approval even to check a new student eligibility which is unnecessary and that's not the normal procedures and I have been working independently since I joined the company.

4.5. On 3rd April 2023 Ms. Olga emailed out to the partners that I was longer incharge, the agents were complaining that she is not responding after that. Ms Olga intention were just to grab attention for her own benefit.

4.6. Ms. Sara blocked admin from assisting me. Hence my partners are not assisted at all by anyone. The Partners have been asking the progress of all my referrals, but I am not able update anything till today. Thus I am very stressful during my maternity.

4.7 Agents' commission has been put on hold solely because Ms. Sara Oshaghi unhappy at me.

4.8 All the works done by me before I went on maternity are also put on hold by Ms. Olga hold without any reasons that cause stress.

4.9 All my new applications are still pending. Due to this all my agents disconnected from me. Thus I started losing all my agents one by one.

4.10 During my pregnancy, I worked without lunch time and till 9.00 p.m without any expectation (which was beyond my work hours, and I still not been appreciated by Ms. Sara Oshaghi. I was working alone hence I was really stressed during my pregnance on 9 months setting up student

accommodation issue, I was made to run from hotel to hostel for 2 weeks to settle 20 students from Uzbekistan, due to it I missed my lunch hours, rest and due to this my baby is born as a colic baby, gas issue, sleeping issue. Right now my baby is facing health issues. My baby is also not able to poop as he struggles due to colic because of my work stress.

4.11 Ms. Sara. Oshaghi's brother Mr. Amir a new to the Education Marketing who works in the same company takes back fat commission every month due to Ms. Sara supporting by giving online inquiries just to him. By right the online inquiry supposedly divided to all the staffs and also the company should not have employed 2 people from same family.

4.12 Due to work stress that Ms. Sara gave me during my maternity leave I was not able to breastfeed my baby from his birth, I always think about work issues.

4.13 Every day, during my maternity leave around or after 9.00 a.m, my agents, students, parents, collaboration partner will be calling me for updates and help but I were not able to give feedback because Ms. Sara had stopped people from assisting me.

4.14. I joined the company during covid-19 pandemic. I accepted lower salary of RM 5000.00 offered by Ms. Sara due to her promise to increase my salary over the time. I regret that I has been 3 years since I joined but no increment whatsoever. Ms. Sara never recommended for raise/ increment of salary to the HR because I am not her favorite staff.

4.14. Ms. Sara promised to pay commission for Direct recruitment RM 400 per student and for collaboration RM 200 per students. I never received any since I joined. I fought for it and was getting the commission for Direct recruitment & Collaboration which cause Ms. Sara angry at me and unhappy.

4.15. Ms. Sara also promised to pay Collaboration commission. I did not get this Collaboration Commission as well because Ms. Sara did not discuss it with management for approval. I saw all the memos that I had submitted on Ms. Sara's table but no initiative taken.

4.16. Ms. Sara discriminates staffs wherein she prioritizes foreigners over Malaysians.

5. Due to the reasons that I have detailed in the abovesaid paragraph 4 herein, I tender my resignation.

Thank you.

Yours sincerely,
Pusparani Mohan"

(c) The Claimant will further contend that the Claimant's demotion/cold storage was motivated by bad faith. The Company has breached the fundamental terms and condition of employment when the Claimant was demoted or cold storage.

[3] The Company had pleaded in its SIR, *inter alia*, as follows:

a) The Claimant did not conduct a proper handover prior to going on maternity leave. Therefore, Ms. Olga Tsilyk who was instructed by Dr Sara to assist her to manage the collaboration projects during the Claimant's absence requested the Claimant to attend one online meeting on 28.3.2023 to get her up to speed on the status of the projects handled by the Claimant. Emails were also sent by Ms. Olga to the project partners informing them that Ms. Olga will be stepping in during the Claimant's maternity leave to ensure that all pending matters are attended to. Ms. Olga did not receive any additional payment or benefits for assisting to manage the collaboration projects handled by the Claimant;

b) The Claimant initially had staff reporting to her. After her staff resigned, the Claimant's role was changed to an individual contributor. Therefore, the Claimant was removed from the Team leader group in May 2023;

c) The Claimant was never at any material time harassed during her confinement/ maternity leave. The Company's employees were instructed not to disturb the Claimant during maternity leave and not to contact her unnecessarily. The Claimant was not prevented from reaching out to the Company's employees and the employees were never at any material time stopped from providing assistance to the Claimant if requested by her;

d) Additionally, the Company asserted the Claimant's statements in the entire paragraph 8 of the SOC purporting that those events had driven her to the constructive dismissal, are calculated, made in bad faith, imaginative, lacked merit and tainted with mala fide and therefore in totality was unlawful. In fact, when Dr. Sara informed the Claimant of the possible reorganization where she might no longer be reporting to Dr. Sara, the Claimant expressed her wish to continue working with Dr. Sara;

e) The Company contended that the Claimant's letter dated 1st July 2023 was the first ever received from the Claimant. Never at any event prior to that letter had the Claimant raised any issues or complaint or grievance relating to her superiors;

f) The Company averred that following her unfounded claim for the constructive dismissal (CD) and her act in bad faith, the Claimant remained absent without approval of leave from 28th June 2023 onwards consecutively till to date;

g) In order to earn ex-gratia, the Claimant had to meet her monthly target of four (4) students in a month (which was a reduced target from 5 students a month). The ex-gratia of RM400 will be paid for each student recruited through the retail recruitment channel in excess of the monthly target. But she had constantly failed to meet the target;

h) There was no agreement made between the claimant and the Company but it was merely an ex-gratia payment of RM400 to encourage and motivate to recruit students. For Assistants Manager level 1-3, no payment of ex-gratia. However for any student recruited in excess of the target of four (4), an ex-gratia of RM400 per student (in excess of the target) will be paid. But in her case, the claimant did not meet the required target for her claims. In collaboration recruitment there was no ex-gratia payment provided;

i) The Company denied the allegation made by the Claimant and stated that the Claimant was the one who had gone to Ms. Sara Oshaghi's (Marketing Director) office a couples of times and requested that the students she recruited on the monthly basis target which is less three (3) students to be placed under Mr. Aymen (Student Ambassador). By doing so she thought she was entitled to claim commission; and

j) This mutual agreement was between the Claimant and Mr. Aymen and did not concern Ms. Sara Oshaghi. The Claimant clearly knew that she was not entitled to claim the ex-gratia under collaboration project. That was why she tried to get Ms. Sara Oshaghi to approve her request.

[4] The Claimant has pleaded in her Rejoinder, *inter alia*, as follows:

a) The Claimant stated that she had been forced and/or constructively dismissed and also forced to transfer department during her maternity leave;

b) The Claimant was given a new department COLLOBORATION DEPARTMENT to establish in 2021. The Claimant had been doing direct recruitment for the past 17 years, the Claimant's agents, networks and students cannot be abandoned or given away for other credits, this was understood by Ms. Sara and arranged the Claimant's commission to claim under a Direct recruitment manager Mr. Aymen (A student working full time under student visa); and

c) the Claimant contented that she had no help to check on the Claimant's application status, student issues, to handle new applications during her maternity leave. Due to mistreatment by the Company the Claimant had taken steps to claim for her misfortunes and commissions.

THE LAWS & ISSUES

[5] The approach to be taken by the Industrial Court when dealing with dismissal cases was stated clearly by the then Supreme Court in the case of ***Wong Chee Hong v Cathay Organisation (M) Sdn. Bhd [1998] 1 CLJ (Rep) 298*** as follows:

> "*When the Industrial Court is dealing with a reference under section 20, the first thing that the Court will have to do is to ask itself a question whether there was a dismissal, and if so, whether it was with or without just cause or excuse.*".

The Laws & the Applicable Test in Constructive Dismissal

[6] It has been well established by our Courts that the proper approach in deciding whether constructive dismissal has taken place is not to ask oneself whether the employer's conduct was unfair or unreasonable (the unreasonableness test) but whether "the conduct of the employer was such that the employer was guilty of a breach going to the root of the contract or whether he has evinced an intention no longer to be bound by the contract". The then Supreme Court in ***Wong Chee Hong's case (supra)*** had affirmed that the contract test is to be applied for constructive dismissal cases. As per Salleh Abas LP at pages 301-302:

> "*The common law has always recognized the right of an employee to terminate his contract of service and therefore to consider himself as discharged from further obligations if the employer is guilty of such breach as affects the foundation of the contract or if the employer has evinced or shown an intention not to be bound by it any longer…….*
>
> *…….Therefore we cannot see how the test of unreasonableness which is the basis of the much advocated concept of constructive dismissal by a certain school of thought in UK should be introduced as an aid to the interpretation of the word "dismissal" in our s. 20. We think that the word "dismissal" in this section should be interpreted with reference to the common law principle.* ***Thus it would be a dismissal if an employer is guilty of a breach which goes to the root of the contract or if he has evinced an intention no longer to be bound by it. In such situation the employee is entitled to regard the contract as terminated and himself***

as being dismissed. *(See Bouzourou v. The Ottoman Bank [1930] AC 271 and Donovan v. Invicta Airways Ltd. [1970] Lloyd's LR 486).*"

[emphasis added]

[7] To successfully claim for constructive dismissal, the Claimant ought to prove all conditions stated in the case of ***Bayer (M) Sdn Bhd v Anwar bin Abd Rahim [1996] 2 CLJ 49*** (which was subsequently affirmed in its appeal at **[1998] 2 CLJ 197**) as follows:-

"Thus, it is settled law that the test applicable in a constructive dismissal case is "the contract test" and not "the test of reasonableness". To claim constructive dismissal, four conditions must be fulfilled. These conditions are:

(1) There must be a breach of contract by the employer;

(2) The breach must be sufficiently important to justify the employee resigning;

(3) The employee must leave in response to the breach and not for any other unconnected reasons; and

(4) He must not occasion any undue delay in terminating the contract, otherwise he will be deemed to have waived the breach and agreed to vary the contract.

(See Wong Chee Hong v. Cathay Organisation, supra)."

[8] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as enunciated by the Court of Appeal in the case

of ***Telekom Malaysia Kawasan Utara v Krishnan Kutty Sanguni Nair & Anor. [2002] 3 CLJ 314***.

[9] In the case of ***Weltex Knitwear Industries Sdn. Bhd. v Law Kar Toy [1988] 1 LNS 258, Abdul Kadir Sulaiman J*** held as follows:

> "*The law is clear that if the fact of dismissal is not in dispute, the burden is on the Company to satisfy the Court that such dismissal was done with just cause or excuse...* ***However, where the fact of dismissal is in dispute, it is for the workman to establish that he was dismissed by his employer. If he fails, there is no onus whatsoever on the employer to establish anything for in such a situation no dismissal has taken place and the question of it being with just cause or excuse would not arise*** *(see* ***Wong Chee Hong v. Cathay Organization (M) Sdn. Bhd. [1988] 1 MLJ 92 SC; [1988] 1 CLJ (Rep) 298****).*"
>
> [emphasis added]

<u>The Issues</u>

[10] In the case of ***R Rama Chandran v The Industrial Court of Malaysia & Anor [1997] 1 MLJ 145 FC at 178***, ***column B-C*** the Federal Court succinctly stated that:-

> "***It is trite law that a party is bound by its pleadings****. The Industrial Court must scrutinize the pleadings and identify the issues, take evidence, hear the parties' arguments and finally pronounce its judgment having strict*

regards to the issues. ***It is true that the Industrial Court is not bound by all the technicalities of a civil court (s 30 of the Act) but it must follow the same general pattern****…*"

[Emphasis Added]

[11] Based on both parties' pleaded case as stated above, the two questions that this Court has to ask itself are:

(a) whether there was a dismissal of the Claimant by the Company; and

(b) if yes, was the dismissal with or without just cause or excuse.

[12] The issue before this Court is whether the Company is guilty of conduct which is a significant breach going to the root of the contract of employment, or which shows that the Company no longer intends to be bound by one or more of the essential terms of the contract that entitled the Claimant to treat herself constructively dismissed. Therefore in this case, the burden of proof is on the Claimant to prove all conditions enunciated in the case of ***Bayer (M) Sdn Bhd v Anwar bin Abd Rahim*** **[supra]** are satisfied, on a balance of probabilities.

[13] If the Court finds the Claimant has managed to establish that she had been constructively dismissed by the Company, then the burden to prove the Claimant's dismissal was with just cause or excuse, shifts to the Company. In the event the Claimant fails to establish that she had been constructively dismissed, then there is no onus whatsoever on the Company to establish anything for in such a situation no

dismissal has taken place and the question of it being with just cause or excuse would not arise.

EVALUATION OF EVIDENCE & FINDINGS

[14] The Court of Appeal in ***Sanbos (M) Sdn Bhd v Gan Soon Huat [2021] 4 MLJ 924; [2021] 6 CLJ 700; [2021] 3 ILR 11*** held that the Industrial Court shall only address reasons stated in the letter of resignation and/or constructive dismissal for leaving employment and not other reasons raised during the hearing of any claim for constructive dismissal:-

> "*[38] …As stated in the authorities we cited earlier, an employee is only entitled to regard himself as dismissed if there is a breach of the fundamental terms of the contract of employment.* ***In the letter of resignation, the respondent only gave two reasons for leaving employment, i.e. the revision of sales commission rate and the change in his area of sales coverage which would reduce his monthly earnings. Therefore, the only question that arises is whether these two complaints amounted to a breach of the fundamental terms of the employment contract. The other reasons he advanced at the Industrial Court hearing are not relevant as an employee cannot rely on reasons not given for considering himself constructively dismissed.*** *Anyway, both the Industrial Court and High Court rightly did not address them*."
>
> [Emphasis added]

[15] At this juncture, the Court feels necessary to state it is regrettable that the Claimant's Submission (more than 90 pages in total) filed was not paginated. Thus, all references to the Claimant's Submission will be by way of reference to the page number according to the pagination done by the Court on the said submission. It is further noted that the contents of the Claimant's Submission are as follows:

(a) pages 3-8: most part of SOC had been reproduced;

(b) pages 12-23: CLWS-1 was reproduced in toto; and

(c) pages 29-37, 44-56, 58-61, 65-84 and 92-97 contain only reproduction of the testimony of COW-1, COW-2 and the Claimant given during the full trial without a single line of submission by learned counsel for the Claimant.

[16] As can be seen in the said CD Letter, the Claimant had alleged various grievances that made her tender her resignation claiming constructive dismissal. The said grievances can be summarized as follows:

(a) alleged unpaid commission;

(b) alleged discrimination, unfair and/or mistreatment by the Claimant's superior, COW-1 and also COW-1's alleged promise for salary increment;

(c) alleged harassment during the Claimant's maternity leave and alleged absence of assistance rendered to the Claimant's partners and/or the putting on hold of the agents' commission;

(d) the Claimant's alleged stress/anxiety and her baby's and her health issues; and

(e) alleged removal of the Claimant from the team leader group and meeting updates.

The alleged unpaid commission

[17] In the said CD Letter, the Claimant alleged that COW-1 promised to pay commission of RM 400 per student for direct recruitment and RM 200 per student for collaboration recruitment. She further alleged that there were arrears of payment of commission due to her.

[18] In her SOC, the Claimant averred that she was promised RM400.00 per student for each referral which she had brought in every month. She further alleged that there is a total sum of RM94,400.00 outstanding from the Company, being her commission in respect of 236 students brought in by her. However, the Claimant had contradicted herself by stating that said sum was purportedly payable for the years 2020 until 2022 and 2021 until 2023 under paragraphs 8 (b) and 8 (w) respectively.

[19] In addition, the following contradictory documents in respect of the alleged commission promised to her, had been tendered in Court:

(a) a police report dated 27.05.2024 at page 22 of CLB-1. According to the said police report, she had referred a total of 236 students for the years 2020-2023; and

(b) Writ of Summons and Statement of Claim filed under Summons No. BB-A52NCvC-105-05/2024 at pages 42-48, CLB-1 ("the Sessions Court suit"). According to the said Statement of Claim, the Claimant alleged that she recruited 236 students from 25.01.2021 until 30.11.2021.

[20] Notably, the Company had brought to the attention of the Court that the Sessions Court suit had been struck out by the Sessions Court and a fresh Writ of Summons and Statement of Claim was filed under Summons No. BB-A72NCvC-659-08/2024. In the suit filed at the Magistrate's Court, it was also stated that the Claimant recruited 236 students from 25.01.2021 until 30.11.2021. See documents tendered by the Company at pages 41-47, COB-2.

[21] The Company submitted that as explained by Dr. Sara Oshaghi, Director of International Marketing Department (COW-1), there are 2 different recruitment channels employed by the Company, which particulars are as set out in the table in the Company's Submission and reproduced below for ease of reference.

Channel	**Retail recruitment**	**Collaboration recruitment**
Incentives	For Assistant Managers only • *Ex-gratia* payment of RM400.00 per student recruited in excess of monthly target	No *ex-gratia* payment
Process	Recruitment of students through agents and non-	This is a student exchange programme through

	agents.	collaboration with other universities.

[22] The Company further submitted as follows:

(a) COW-1 further testified that the *ex-gratia* payment will only be paid for each student recruited in excess of an employee's own monthly target for the retail recruitment channel, which similarly applies for the Claimant.

"*Q:* *You mentioned that you told her, and you briefed her why she* was *not entitled to ex-gratia. Can you please elaborate on this?*

A: *Yes. For being entitled for ex-gratia on retail recruitment, there's* a *monthly target that you have to meet.* So, *you will only be entitled of ex-gratia excess to your monthly target. And this is something that we talked over and over, and she's fully aware of this. Collaboration projects, because of the nature of the projects, there is no ex-gratia allocated for those projects, because it's totally because of the nature of the project.* So *this* was *very, very clear from the beginning.*"

(b) During her cross-examination, the Claimant had referred to page 76 of COB-1 and admitted and she was only entitled to *ex gratia* payment for each extra student recruited through the retail recruitment channel in excess of her target.

"*Q:* *So, I'm putting it to you* Ms *Rania,* as *far* as *this document is concerned, the entitlement to ex-gratia is only for retail recruitment students, correct?*

A: *Correct.*

Q: *Now, I further put to you* Ms *Rania that this RM400 is only paid for students recruited in* excess *of your target. Correct?*

A: *Yes.*"

[23] The Claimant's letter of appointment dated 16.06.2020 ("the said Appointment Letter") together with Appendix A and Job Description can be found at pages 1-10 of COB-1. Appendix A attached to the said Appointment Letter (the said Appendix A") spells out the terms and conditions of service applicable to her appointment. Nowhere in the said Appendix A states that the Claimant will be paid RM400.00 per student for each referral which she had brought in every month. The Claimant herself had in fact confirmed that there is no contractual entitlement to commission during her cross-examination.

"*Q:* *Do you agree that it is not stated anywhere in your letter of appointment, that you're entitled to commission or ex-gratia payment? Are you looking at your letter of appointment?*

A: Yes. *No. it's not mentioned here.*"

[24] In addition, COW-1 had testified in COWS-1 in respect of pages 76-80 of COB-1 as follows:

"*Q9: Please refer to paragraph 4.1 of the Claimant's letter dated 1.7.2023 (p15 COB) and paragraph 8(b) of the Statement of Case. Was the Claimant promised RM400.00 for each student she successfully brought in and was her commissions claim to be submitted on a yearly basis?*

A9: I deny the Claimant's allegations in paragraph 4.1 of her letter dated 1.7.2023 and in paragraph 8(b) of the Statement of Case.

The Claimant was never promised RM400.00 commission for each student she successfully brought in. The Claimant was not entitled to any commission. However, to encourage employees to meet objectives and KPIs, Assistant Managers, including the Claimant would be entitled to an ex gratia payment of RM400.00 for each student recruited in excess of their monthly target through the retail recruitment channel. Retail recruitment is carried out through agents and non-agents to attract students to study at City University Malaysia ("CityU"). When the Claimant commenced employment, her monthly target for retail recruitment was 5 students. This was subsequently reduced to 4 students per month. Students who are recruited through the collaboration recruitment channel i.e. where students from other universities come to CityU for an exchange program through a collaboration with their universities do not count towards the Claimant's recruitment target and no ex gratia payment will be paid for this category of students. The Claimant has never achieved her target since the date she commenced employment and as such, she is not entitled to any ex gratia payment.

Total students that the Claimant alleged that she recruited through retail recruitment channel and collaboration recruitment channel in pp76 – 80 COB. From this list, I have extracted the information from the Company's record and compiled them in separate tables based on the recruitment categories and the dates the students were recruited. The tables at pp3 – 6 of the Company's Bundle of Documents (2) ("COB2") contain details of the students recruited through the retail recruitment channel for 2020 to 2022 by the Claimant. However, the tables at pp7 – 9 COB2 contain details of the students recruited through the collaboration recruitment channel by me and one Dr. Gamal, an ex-colleague of mine, the Claimant only managed these students and not the one who recruited them.

Claims for the ex gratia payment if any are to be submitted on a monthly basis and not on a yearly basis as alleged by the Claimant."

[25] Notably, COW-1 had also testified in her re-examination that the Claimant did not meet her target for collaboration and retail recruitment.

[26] The Court further notes there is a provision on "Target to be met" which was stated as "A minimum of five (5) students per month for the first six (6) months and will be reviewed at the end of the first three (3) months to monitor progress which if not encouraging may result in cessation of employment" under Item No. 7 of the said Appendix A. Furthermore, it can be seen in Job Scope and Responsibilities No. 2 that the Claimant was responsible in "2. Making outbound marketing and sales effort via phone and email to achieve enrolment rate goals". Hence contemporaneous

documents filed before this Court lean in support of COW-1's testimony and the relevant provisions in these documents clearly show that the Claimant had her own monthly target for recruitment of students, which was part and parcel of her job scope and responsibilities in the Company.

[27] From the oral and documentary evidence before this Court, it is clear that there is no provision in the Appointment Letter to pay for students recruited through the retail recruitment and collaboration channel. Testimony of both the Claimant and COW-1 show that the arrangement of *ex-gratia* payment was agreed only in respect of students recruited through the retail recruitment and will only be paid for each student recruited in excess of an employee's own monthly target for the retail recruitment channel. Since the Claimant did not achieve her revised monthly target per month set for the retail recruitment, which was four (4) students according to COW-1, she was not entitled to any ex gratia payment. Hence, the Claimant had failed to prove such alleged unpaid commission on a balance of probabilities.

[28] The next question that follows would be the alleged placing of the Claimant's student recruitment numbers under Mr. Aymen. On the one hand, the Claimant contended that COW-1 had unilaterally placed her student recruitment number under another staff, Mr. Aymen. On the other hand, she had alleged that she had been getting her commission from Mr. Aymen since January 2023 but all of her commission was stopped unilaterally in March.

[29] In rebuttal to the Claimant's allegations in the said CD Letter, COW-1 had testified in COWS-1 as follows:

"*Q10: In the same paragraph, the Claimant alleges that you had unilaterally place her claims under Mr. Aymen and that you had blocked her commission under Mr. Aymen. What is your response to this?*

A10: These allegations are not true. From 25.1.2021 onwards, the Claimant was tasked to entirely handle collaboration projects to manage students through the collaboration recruitment channel. However, she was not stopped from recruiting students through the retail recruitment channel if she wished to do so.

The Claimant came to see me several times and requested that the students she recruited on a monthly basis to be placed under Mr. Aymen, so that she is entitled to the ex gratia payment because she was entirely handling collaboration projects. I was unable to accommodate this request as the recruitment count has to be properly recorded. From what I have known, there was a personal agreement between the Claimant and Mr. Aymen for the students that she has recruited to be parked under him. As far as the Company is concerned, ex gratia payments will be paid to employees who meet their targets based on the number of excess students recruited. Mr. Aymen's ex gratia payment was paid to him based on the recruitment numbers in the Company's record. I had never blocked her commissions nor placed her commissions under Mr. Aymen unilaterally."

[30] The WhatsApp messages tendered at pages 74-75 of COB-1 were exchange of messages, which was confirmed by the Claimant during her cross examination, as that between Mr. Aymen and her. It is to be noted that these messages contained the Claimant's bank account details and transaction receipt as attachment. When referred to these WhatsApp messages during her cross-examination, the Claimant further confirmed that there was arrangement for payment of ex-gratia directly from Aymen to the Claimant.

[31] This Court rejects the Claimant's allegations in the said CD Letter that COW-1 had unilaterally placed her student recruitment number under another staff, Mr. Aymen as being improbable after weighing the relevant oral and written evidence before it.

The alleged discrimination, unfair and/or mistreatment by the Claimant's superior, COW-1 and also COW-1's alleged promise for salary increment

[32] In the said CD letter, the following allegations were made by the Claimant against COW-1:

(a) COW-1 threatened the staffs to not reveal matters or say the truth, she behaved rude and call names as idiot/stupid. COW-1 treated everyone in the office like slaves.

(b) COW-1's instruction should be followed by everyone in the office and she had followed too in many situations just to secure her own rice bowl.

(c) COW-1 had treated the Claimant very low by playing victim with her ego. She had instructed the administration department to obtain COW-2's approval for all her matters to make her feel small and she did felt so several times.

(d) COW-1 discriminates staffs wherein she prioritizes foreigners over Malaysians.

[33] The Company submitted that the said allegations are concocted and in fact, are against the contemporaneous evidence led during the hearing which demonstrates that the Claimant had a good relationship with COW-1. WhatsApp messages back from 2022 were tendered at pages 13-15, 18-19, 21-26 and 30-31, COB-2 to show that the Claimant had a good relationship with COW-1 and COW-2 throughout her employment with the Company.

[34] In respect of the alleged promise for increase in the Claimant's salary, it is to be noted that there is no provision for guaranteed increment in the said Appointment Letter. Neither was there any evidence tendered to show proof of the purported promise for salary increment for the Claimant. In fact, the Claimant had confirmed in her cross-examination that there was no such guaranteed increment for her employment with the Company. The Claimant further confirmed that she was not automatically entitled to have any salary increment in any given year.

[35] The Claimant was the sole witness for her case before this Court. Besides bare allegation, no evidence was tendered in Court to prove her above allegations

as contained in the said CD Letter. In the absence of cogent evidence relating to the purported allegations, little or no probative value will be accorded to such allegations.

The alleged harassment during the Claimant's maternity leave and alleged absence of assistance rendered to her partners and/or putting on hold of the agents' commission

[36] In the Claimant's Submission and Reply, the Claimant alleged violation by the Company of the following provisions in the Employment Act 1995 ("EA 1955").

(a) The Company had breached Sections 37 (which the Court believes had been wrongly typed as Section 31 at paragraph 4 of the Claimant's Submission) by failing to abide by the length of the maternity leave and insisted the Claimant to attend work commitments;

(b) The Company had been misguided on Section 15(2) by failing to take cognizance of the Claimant's medical leaves for two days after her maternity leave; and

(c) The objections raised by the Company that commission paid via cash to the Claimant does not account to wages is in breach of Section 25(A)(1).

[37] It is undisputed that there was no provision in the said Appointment Letter for ex-gratia payment. From the evidence before the Court, the Claimant was not entitled to any ex-gratia payment as alleged. Hence, the Claimant's reliance on Section 25(A)(1) of the Employment Act 1955 ("EA 1955") to show that the so-called commission paid via cash form part of the computation of wages was misconceived.

[38] With regard to Section 15(2) of the EA 1955, the Company did not make any reference to this provision. It is to be noted that the Claimant did not inform COW-1 of her medical leaves and COW-1 only knew about the said medical leaves after the Claimant had left her employment with the Company. In this case, it was the Claimant who had tendered the said CD Letter claiming constructive dismissal and hence dismissal was not pursuant to Section 15(2) of the EA 1955.

[39] The Court agrees with the Company's contention that there was no breach of Section 37 of EA 1955 which deals with a female employee's entitlement to maternity leave. The Claimant had never disputed that she had gone on maternity leave of 98 days, as prescribed under the EA 1955 and all her wages been paid during this period. Thus, Section 37 had been complied with.

[40] In the instant case, the Claimant alleged continuous harassment during her maternity leave. On the other hand, the Company contended there was only minimal communication with the Claimant out of necessity to ensure smooth running and continuity of the Company's business then due to no proper handover of the Claimant's job before her maternity leave.

[41] The Claimant had admitted during her cross-examination that COW-1 had requested her to do handover of her work before she went on maternity leave. The Claimant had testified as follows:

> "*Q: So, would you agree with me that during your maternity leave you were actually prioritizing your recuperation and your newborn baby?*
>
> *A: Yes.*

Q: Yes, so that was your priority, right? And in fact, Sara has actually told you before you go on maternity to conduct handover of duties, correct?

A: Yes."

[42] COW-1 had testified in COWS-1 as follows:

"*Q23: Please refer to the email dated 5.4.2023 at p38 COB2. Can you please let us know why the email was sent to the Claimant?*

A23: The Claimant did not conduct a proper handover before going on her maternity leave, resulting in issues with the projects handled by her. For example, collaboration projects are stuck as project details were not properly handed over to anyone. I also wish to highlight that Ms. Olga Tsilyk was tasked to cover for the Claimant while she was on maternity leave. However, she faced issues doing so as the Claimant did not conduct a proper handover. Despite the online meeting on 28.3.2023 where she had agreed to pass on the required details, she has not done so. Therefore, I had to send an email to the Claimant to request for her assistance to attend to the needful to ensure smooth running of the projects. The Claimant did not respond to my email. As regard alleged issues faced by the Claimant's partners on the purported lack of support while she was away, this is not true. Ms. Olga Tsilyk was attending to the Claimant's work in her absence. The Claimant did not reach out to us for assistance on the queries raised by her partners during her absence."

[43] COW-2 had testified in COWS-2 as follows:

"*Q5: What were you duties and responsibilities as the Claimant's maternity leave cover?*

A5: The Claimant started maternity leave on 15.3.2023 but had not been working in the office even before that. She was responsible for overseeing international collaboration projects.

Following instructions from my Head of Department, Ms. Sara Oshaghi, I took over to ensure these projects ran smoothly, including those under the Claimant's supervision during her maternity leave. However, the handover was poorly managed, many essential documents were not properly provided to me. I only received a few Memorandum of Understanding (MoUs) and Memorandum of Agreement (MoAs) without any list of recruited students and was incomplete. These documents were not even passed to me, Claimant left the folder with one of the admin executives.

Due to the incomplete information for the handover projects, my head of Department asked me to arrange a online meeting on 28.3.2023 with Claimant and other colleagues from Registrar office to discuss among others the pending projects as well as graduation and certificate processing that was not provided by her. I refer to my email dated 27.3.2023 at p39 of the Claimant's Bundle of Documents ("CLB").

Q8: Please refer to paragraph 4.2 of the Claimant's letter dated 1.7.2023 (p16 COB). The Claimant alleged that you had constantly harassed her during her maternity leave. What is your response to this?

A8: I deny this allegation. I did not harass the Claimant during her maternity leave. I only sent an email on 27.3.2023 requesting for an online meeting and asked once on 31.3.2023 through WhatsApp about a student's qualification since the documents were incomplete.

I did not push for an immediate response and left it to her to reply when she was available, as I understand that she was recuperating from childbirth and had to take care of her newborn baby. I did not call her nor send follow up WhatsApp messages and did not send any further follow up emails.

I refer to my email dated 27.3.2023 to the Claimant at p36 of the Company's Bundle of Documents (2) ("COB2") and to my WhatsApp message to the Claimant on 31.3.2023 at p35 COB2."

[44] The Court agrees with the Company's contention that the few occasions whereby the Company was forced to contact the Claimant arose out of necessity. Despite this, there were very limited interactions, which when considered objectively, does not amount to any harassment. Crucially, the Claimant attended only one online meeting on 28.3.2023 during her maternity leave as requested, without any objections. The Claimant agreed to attend the online meeting on 27.03.2023 and that was the one and only time a meeting was held.

[45] The Company further submitted that by her own choice, the Claimant herself had been working by contacting Bavitra and Hawa during her maternity. It was stressed that a conscious decision by the Claimant to attend to work cannot be used as evidence to aid an attempt to shift the blame to the Company.

[46] The Claimant had insisted there was handover of her job before her maternity leave. Yet she was unable to tender any evidence or any form of communication to show such handover to COW-2, who was tasked to take over the Claimant's work to ensure the Claimant's projects ran smoothly, including those under the Claimant's supervision during her maternity leave. Neither was there any evidence to show any handover to the Claimant's any other colleagues in the Company. The Claimant had tendered various emails, WhatsApp messages in Court but none of these communications show any proper handover of her work to COW-2 or anyone in the Company before she went on her maternity.

[47] The Claimant also alleged that no assistance was rendered to her partners and/or putting on hold of the agents' commission during her maternity and testified in CLWS-1 as follows:

> "*Further on 3rd April 2023 Ms. Olga emailed out to the partners that I was no longer in-charge, the agents were complaining to me that Ms. Sara is not responding after that. Ms. Olga intention were just to grab numbers and businesses for her own benefit."*

"Q19: What happened thereafter?

A19: Thereafter Ms. Sara blocked admin from assisting me. Hence since the Claimant's partners are not assisted at all by anyone thus made the Partners keep asking the progress of all my referrals, but I was not in any position to update anything till to date. Thus this made me very stressful during my maternity.

Further the agents commission has been put on hold solely because Ms. Sara was unhappy with me for no reason. Further all the works done by me before I went to maternity leave are also put on hold by Ms. Olga without any reasons.

Further all of my new applications are still pending. Due to this all of my agents are disconnected with me."

[48] On the other hand, the Company submitted that the Claimant did not keep COW-1 in the loop in any of her emails that were sent by the Claimant during her maternity leave. By keeping COW-1 out of the email thread, there was no way assistance could be rendered. COW-1's evidence is as follows:

"Q: My last question to you is, whilst the Claimant was away, was she kept in copy in all communications with agents and partners?

A: Yes, she was. Well, during her maternity, the only person she was not communicating was me and Olga. She was communicating with all other departments and nobody stopped her of doing anything. And she did not cc me or Olga in a single

email communicating with visa unit, with registry, with admission. Not at all during her maternity. So, for me, I would appreciate it because for me, it's like at the end of the day, I would never say no to application or student numbers because that's the KPI of our department. But excluding me from the email would make it more difficult for me to know what's going on and give her support. Excluding Olga from communication, also making the same mistake like we wouldn't know where things are. So, for me, I still don't understand why I was excluded from all the communication when she was working during maternity, I was not cc'ed in anything. Olga was not cc'ed in anything."

[49] In addition, COW-2 had testified in COWS-2 as follows:

"Q7: Please refer to paragraph 4.5 of the Claimant's letter dated 1.7.2023 (p17 COB) and paragraph 8(n) of the Statement of Case. The Claimant had alleged that your email dated 3.4.2023 was intended to grab numbers and businesses for your own benefit. What is your response to this?

A7: I deny the allegation. As I had explained earlier, the project was on-going, and the partners had inquired about student certificates. I found that the Claimant had not submitted the required information in the system. Since I needed to resolve the issue, I contacted the partners to get their latest updates via email on 3.4.2023 (p38 CLB) to arrange a meeting with CIMS on 6.4.2023.

My email of 3.4.2023 was not sent for personal gain. I did not receive any extra credit or benefits for managing these projects while covering for the Claimant during her maternity leave, as they were not newly recruited students."

[50] It is to be noted that the Claimant had admitted during her cross-examination that "*because she didn't return to work, there was no re-handover, that is whatever that she was handling before this were not passed back to her because she had never gone back to her office after her maternity leave.*".

[51] In my considered view, on the material before this Court, the very limited interactions with the Claimant carried out by the Company out of necessity, did not amount to any harassment. The Company had not breached any provision of the EA 1955 or any fundamental term of the Claimant's employment contract. Neither do I find the allegations and testimony of the Claimant convincing in the absence of any cogent evidence tendered.

The Claimant's alleged stress/anxiety and her baby's and her health issues

[52] In the said CD Letter, the Claimant had alleged, amongst others, the following issues concerning her health and her baby's wellbeing:

"*(a) During her pregnancy, I worked without lunch time and till 9.00 p.m. She was working alone, hence she was really stressed during her pregnancy. Due to her missing my lunch hours, rest, her baby was born as a colic baby with gas and sleeping issues. Right now her baby is*

facing health issues. My baby is also not able to poop as he struggles due to colic because of my work stress.

(b) Due to work stress during her maternity leave, the Claimant was not able to breastfeed her baby from his birth."

[53] As correctly pointed out in the Company's Submission, no evidence (whether medical evidence or otherwise) was led by the Claimant to support her contention that her working conditions/ hours during her pregnancy and maternity leave had affected her health and her baby's wellbeing. Neither was any evidence produced by the Claimant to prove that she was instructed to perform the alleged works.

[54] In contrast, the Claimant had admitted during cross-examination that the Company had actually given her a bit of flexibility in terms of working hours and it was up to her to organise her work and also organise her lunch hours then.

"*Q: So, we move on to during your pregnancy. So, do you agree that during the last few months of your pregnancy you were given quite a bit of flexibility from the company?*

A: Yes.

Q: Agree? You were allowed to come in late.

A: Yes.

Q: Yes, and I'm instructed, the month before you were scheduled to deliver you were also allowed to work from home.

A: Yes."

[55] Besides bare allegation, not a single shred of evidence was tendered in support of the alleged medical condition and health issues of the Claimant and her baby. In the absence of cogent evidence relating to the purported allegations, little or no probative value will be accorded to such allegations.

The alleged removal of the Claimant from the team leader group and meeting updates.

[56] The Claimant alleged that she had been removed from the Company's Team Leader group and meetings update. According to her, this made her feel that her job is not secured day by day due to her maternity and that made her inevitably fall into depression.

[57] Evidence led by the Company showed that the Claimant was the only person in her team after the resignation of the only staff under her. It was submitted that as explained by COW-1, there was no need for the Claimant to be in the WhatsApp Group because and every WhatsApp conversation can be on a personal chat. Further, after the Claimant's removal, there were no activities happening in the WhatsApp group. See page 10, COB-2.

Further allegations made in the Claimant's Submission and Claimant's Reply

[58] The Claimant had made various allegations below in the Claimant's Submission:

(a) the Claimant alleged that COW-1 was lying and not a credible witness. As correctly pointed out in the Company's Reply, despite making such allegation, the Claimant had failed to explain how and why COW-1 is not a credible witness; and

(b) fleeting remarks were made against COW-2's testimony.

[59] This Court agrees with the Company's submission that these are bare allegations and devoid of proof. No cogent evidence was tendered to show any issues with the testimony of COW-1 and COW-2. Hence little or no probative value will be given to such unsubstantiated allegations.

[60] The Claimant had testified that she had gone on maternity leave from 15.03.2023 to 21.06.2023. Thereafter she was said to be on medical leave from 22.06.2023 to 27.06.2023. Subsequently she had tendered the said CD Letter, claiming constructive dismissal by the Company, without reporting back to work at all after her maternity leave and medical leave had ended.

[61] This Court is of the considered view and agrees with the learned Chairman in the case of ***Zaidi Baharudin v TH Properties Sdn Bhd [2024] ILRU 0188*** submitted by learned Counsel for the Company, which held that an objective approach ought to be taken to consider whether the breach by the employer is so fundamental that the employee can regard himself/herself as being constructively dismissed.

"*[99] The Transfer was decided pursuant to* a *genuine business need and in good faith; and the Claimant failed to show that there were any act of victimisation, harassment, intimidation or mistreatment by the Company towards him. On the contrary, the evidence* shows *that the Claimant voluntarily chose to part ways with the Company by terminating his contract of employment on his own accord.*

[100] This Court has benefited by the decision in ***Alan Thomas Bohlsen v Draftworldwide Sdn Bhd [2009] 1 LNS 550,*** *in which the High Court illustrated the circumstances in the following words:*

> ***[31] The phrase "constructive dismissal" do not give the employee the right to automatically terminate the contract when his employer had acted or behaved unreasonably towards him.*** *Only when the employer's wrongful conduct is serious, amounting to a fundamental breach of the contract where a reasonable person would be able to conclude that the employer had evinced an intention not to be bound by the contract, would the employee be entitled to consider himself as constructively dismissed ...*
>
> ***[32] It must be emphasised that only the actual conduct of the employer and not the perception of the employer's conduct by the employee that can support a case of constructive dismissal. So, the employee's personal opinion or subjective reaction to the change is irrelevant.*** *An objective view point is preferred in that whether speaking objectively the change by the employer to the*

employee was so fundamental that the employee can regard himself as constructively dismissed."

[Emphasis added]

[62] This Court also observes that the Claimant has failed to provide any details if and when these grievances were raised and whether any notice had been given to the Company to remedy the problem and/or alleged breaches by the Company. Notably, COW-1 had stated as follows during her cross-examination:

"*Q: Ok. Next question. Dr Sara, I refer you to your Question 7 in your witness statement. You have stated here, "This is the Claimant's letter dated 01.07.2023 whereby she alleged that she was constructively dismissed by the Company." Dr Sara, you said, "It was the Claimant's own decision to leave employment abruptly on the same day."*

A: Correct.

Q: What makes you to say this? You used the word "abruptly". Why did you use the word "abruptly"?

A: For me, the reason is you are going on maternity, you are not doing proper handover, you are going on a medical leave without even texting or informing me as a Head of Department, because usually when you apply for leave, you have to also give verbal notice. This is notice, this is the rules of the Company. So, you ignore me completely. After all I tried to keep everything in place so, when you are coming back, everything is ready for you to take over and nothing is stuck. And you just leave me in the mess and then you resigned and you didn't even

tell me that you want to resign or you have this intention. And the only time that you emailed me is like I need you to sign this form. So, that's what happened. That's for me is not professional or a nice thing to do.

Q: Ok. Dr Sara, you agreed with me that the Claimant has tendered in her resignation dated 01.07.2023.

A: Not to me, to HR.

Q: Ok, very well. Dr Sara, this means a person given so much of responsibility in your Company for the past two years and knowing she has child that needs extra financial support, all of a sudden decided to resign the Company, in your assumption or opinion, a normal person, is that normal? You said she abruptly tendered in her resignation. Is that normal?

A: I am sorry, I wouldn't be able to answer that because she hasn't communicated with me at all. So, I can't answer that, I am sorry."

[63] The said CD Letter had listed in paragraph 4 thereof the Claimant's alleged grievances that made her tender her resignation and stated that the said resignation would take effect immediately. It is clear from COW-1's testimony that she had no knowledge of the Claimant's resignation until the Claimant contacted her for the signing of certain forms required by the Company. It is pertinent to note that some of the alleged grievances were those during the Claimant's pregnancy which was some nine months prior to the commencement of her maternity on 15.03.2023.

[64] It is evidenced that no communication was made by the Claimant to COW-1 or the human resources department of the Company prior to the said CD Letter, of the alleged grievances therein for them to remedy the alleged grievance. It is also clear that the Claimant did not contact COW-1 or the Company's human resources department prior to 01.07.2023 regarding the Claimant's alleged grievances, let alone placing the Company on sufficient notice period giving time for the Company to remedy the alleged breaches of the employment contract, if any.

[65] From the evidence before this Court, can it be said that the Company is guilty of conduct which is a significant breach going to the root of the contract of employment, or which shows that the Company no longer intends to be bound by one or more of the essential terms of the contract? The burden is on the Claimant to prove all conditions enunciated in the ***Bayer's case*** **[supra]** are satisfied, on a balance of probabilities, which she had failed.

CONCLUSION

[66] Based on the totality of the evidence adduced by both parties as well as the submissions made without regard to technicalities and legal form as stated under section 30(5) of the Act, this Court finds that the Claimant has failed to discharge her burden of proving on the balance of probabilities that the Company had violated or breached any of the Claimant's fundamental terms and conditions of employment that entitled the Claimant to treat herself constructively dismissed. Since no dismissal had taken place and the question of it being with just cause or excuse would not arise, there is no need to deliberate on the issue of whether there was just cause or excuse for the Claimant's alleged termination.

[67] Accordingly, the Claimant's claim is hereby dismissed.

HANDED DOWN AND DATED THIS 26th DAY OF NOVEMBER, 2025.

-signed-

(CHOW SIEW LIN)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR